

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DEVAL COCHRAN, RAQUEL COCHRAN, J.C.P. 1,
Infant by her mother natural guardian, Raquel Cochran,
and J.C.P. 2, Infant by her mother natural guardian, Raquel
Cochran,

Index No.

Date Purchased:
November 17, 2020

Plaintiffs,

SUMMONS

-against-

Plaintiff designates Kings County
as place of trial

CITY OF NEW YORK, POLICE OFFICER GERALD
CASCIOLA, Tax No. 950168, SERGEANT HILTON
JEAN-PIERRE, Tax No. 941954, CAPTAIN ADEEL
RANA, Tax No. 935565, and DEPUTY CHIEF CHARLES
MCEVOY,

Basis of venue: CPLR §504(3)

Defendants.
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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiffs' attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
November 17, 2020

Yours, etc.,

HELD & HINES, L.L.P.

/s/ Philip M. Hines
PHILIP M. HINES, ESQ.
Attorneys for Plaintiffs
2004 Ralph Avenue
Brooklyn, New York 11234
(718) 531-9700
phines@heldhines.com

Defendants' Addresses:

City of New York
100 Church Street
New York, New York 10007

P.O. Gerald Casciola, Tax No. 950168
N.Y.P.D. Intelligence Division
88 10th Avenue
New York, New York 10011

Sgt. Hilton Jean-Pierre, Tax No. 941954
New York City Police Department - 81st Precinct
30 Ralph Avenue
Brooklyn, New York 11221

Capt. Adeel Rana, Tax No. 935565
New York City Police Department - 84th Precinct
301 Gold Street
Brooklyn, New York 11201

Deputy Chief Charles McEvoy
Deputy Chief's Office
1 Police Plaza
13th Floor, Room 1300
New York, New York 10038

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Infant by her mother natural guardian, Raquel Cochran, and
J.C.P 2, Infant by her mother natural guardian, Raquel
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Index No.

VERIFIED COMPLAINT

Plaintiffs,

-against-

CITY OF NEW YORK, POLICE OFFICER GERALD
CASCIOLA, Tax No. 950168, SERGEANT HILTON
JEAN-PIERRE, Tax No. 941954, CAPTAIN ADEEL
RANA, Tax No. 935565, and DEPUTY CHIEF CHARLES
MCEVOY,

Defendants.

-----X
Plaintiffs, by their attorneys, HELD & HINES, LLP, complaining of the defendants,
hereinafter state and allege as follows upon information and belief:

THE PARTIES

1. At all times alleged herein, Plaintiffs were residents of the City and State of New York, County of Kings.
2. At all times alleged herein, plaintiffs J.C.P. 1 and J.C.P. 2 were and remain infants. Plaintiff Raquel Cochran is the mother and natural guardian of both infants.
3. Upon information and belief, and at all times alleged herein, defendant City of New York ("City") was and remains a body corporate and politic, constituting a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. At all times alleged herein, defendant City maintains and operates a police department, the New York City Police Department ("NYPD"), which acts as its agent in the area

of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance and operation of a police force and the employment of police officers.

5. At all times alleged herein, defendants Gerald Casciola, Hilton Jean-Pierre, Adeel Rana, and Charles McEvoy were NYPD law enforcement officers employed by the City on the date of the subject incident and were direct participants in the wrongful acts and omissions alleged herein.

6. At all times alleged herein, the defendant officers engaged in the alleged wrongful acts, omissions, misconduct, and abuse while acting under color of law.

7. At the time of the subject incident, the defendant officers were acting as employees of and/or on behalf of the City and/or NYPD.

FACTUAL ALLEGATIONS

8. On November 20, 2019, at approximately 6:00 a.m., the defendant officers and other members of the New York City Police Department arrived at the plaintiffs' apartment, located at 701 Gates Avenue, Apartment 5B, Brooklyn, New York (hereinafter, "the subject apartment"), to execute a no-knock search warrant.

9. Plaintiff Deval Cochran along with his sister, plaintiff Raquel Cochran, and Raquel's two (2) daughters, infant-plaintiffs Jamyra Cochran-Porter and Janiya Cochran-Porter, were residing in the subject apartment at that time.

10. At the aforementioned date and time, the plaintiffs were suddenly and terrifyingly awakened from their sleep when defendants P.O. Gerald Casciola, Capt. Adeel Rana, Sgt. Hilton Jean-Pierre and at least six (6) other members of the NYPD's Emergency Services Unit forcefully broke down their door and charged inside wearing military-style uniforms, helmets,

and body armor and carrying automatic rifles.

11. Plaintiffs were not criminals, were not suspected of being criminals, and had not done anything illegal to warrant this sudden and unconstitutional intrusion into their home. Rather, the plaintiffs were in the right place at the wrong time – in their apartment sleeping when the defendants came looking for someone else.

12. Plaintiffs were handcuffed, detained, and kept from work and school while the NYPD searched their persons, home, property, and personal effects. None of the plaintiffs were arrested, none of the plaintiffs were charged, and no illegal activity was determined to be operating from the subject apartment.

13. Prior to said date, the defendants applied for and obtained the subject no-knock search warrant under false pretenses and based upon unreliable and uncorroborated information.

14. No probable cause existed for the search warrant as the defendants' confidential informant ("C.I.") was unreliable, not credible, and not corroborated. No signed affidavit from the C.I. was offered to the Court or included in the warrant application. The warrant was entirely predicated upon unreliable information and a C.I. that was not credible.

15. Basic police work would have adduced that the target, Drew Gordon, did not live, stay, or traffic crack from the subject apartment. In fact when NYPD officers (possibly one or more of the defendant officers) came to the subject apartment several months prior looking for Drew Gordon in relation to an unpaid child support matter, the plaintiffs advised the officers that they had lived there for years, that they did not know Drew Gordon, and that Drew Gordon had never lived there.

16. No reasonable police officer would believe that probable cause existed to obtain a search warrant for the plaintiffs' apartment.

17. No reasonable police officer would believe that probable cause existed to search the plaintiffs' apartment.

18. No reasonable police officer would believe that Drew Gordon lived or stayed at the plaintiffs' apartment.

19. No reasonable police officer would believe that Drew Gordon trafficked crack from the plaintiffs' apartment.

20. Had defendant P.O. Casciola actually surveilled the subject property as the NYPD indicated, it would have immediately become apparent that not only did Drew Gordon not occupy the subject premises and that crack was not being sold out of the premises, but also that the plaintiffs and small children were living at the location.

21. As set forth in the search warrant application dated November 15, 2019, and signed by defendants P.O. Casciola, Capt. Rana, and Deputy Chief McEvoy, the target of the search warrant was Drew Gordon, a 44-year-old male, who the defendants purported was occupying what is (and has been for the last fourteen years), the plaintiffs' residence.

22. The defendants' no-knock warrant application also incorrectly stated that "in addition to target subject there is an 1 additional male and 1 additional female at location. There are no small children, no dogs and no elderly."

23. The warrant application also stated that a confidential informant purchased drugs from Drew Gordon on three (3) prior occasions. Despite the latter information, the police officers did not attempt to secure an arrest warrant for Mr. Gordon and he had no active warrants at the time.

24. On or about November 13, 2019, the no-knock search warrant was issued by the Hon. Laura R. Johnson – curiously, two days prior to the warrant application – based upon an

affidavit and stenographically-recorded testimony by defendant P.O. Casciola. Despite stating NYPD's purported need for a no-knock warrant, and the urgency and necessity that it be "no-knock" rather than announced ("...to make an immediate search of: 701 Gates Avenue, Apartment 5B, Brooklyn, New York'), the defendants did not act with due haste. Instead, they waited an entire week to execute the search warrant.

25. On November 20, 2019, at approximately 6:00 a.m., the defendant officers and other members of the New York City Police Department forcefully entered the plaintiffs' apartment without knocking. Plaintiffs were awoken by police officers with machine guns drawn and pointed at them.

26. Plaintiff Deval Cochran was immediately handcuffed by the police officers.

27. Plaintiff Deval Cochran spoke to the officers and told them that his sister, plaintiff Raquel Cochran, and the infant plaintiffs were asleep in the back room. The officers then proceeded to the back room and terrified plaintiff Raquel Cochran and her daughters as they were pointing guns at them and screaming at them. Plaintiff Raquel Cochran and infant J.C.P. 1 were handcuffed by the officers.

28. After approximately three (3) hours of detaining the plaintiffs while they searched their residence and damaged their personal property, the defendants determined that Drew Gordon was not present thereat and released the plaintiffs.

29. As set forth above, one or more statements contained in the defendant officers' application for the search warrant was untruthful or unreliable.

30. The defendant officers improperly relied upon the confidential informant, to the extent the informant even exists, to obtain the subject search warrant.

31. The defendant officers' application for the search warrant failed to state the basis

of the informant's knowledge.

32. The defendant officers failed to make a showing that the informant was credible.

33. The defendant officers failed to make a showing that the informant had provided accurate information in the past.

34. The defendant officers failed to conduct an investigation into the information provided by the informant.

35. The defendant officers failed to corroborate or confirm through their own investigation that the informant's statements regarding the plaintiffs' residence suggested or directly related to criminal activity occurring thereat.

36. By virtue of the foregoing, the subject search warrant was improperly obtained and invalid.

37. By virtue of the foregoing, there was no probable cause for the search warrant.

38. As there was no probable cause for the search warrant, the defendant officers were not lawfully empowered to effectuate a search of the plaintiffs' residence and belongings nor detain them.

39. The defendant officers failed to act with the reasonable force necessary to effectuate the search warrant. The defendant officers pointed weapons at the plaintiffs, handcuffed them, and detained them in their home.

40. The handcuffs applied to each of the plaintiffs were tight and caused each plaintiff to suffer physical injury.

41. In addition to physical injuries, each of the plaintiffs were traumatized, scared, embarrassed, humiliated, and caused to suffer other emotional injuries.

42. In addition to the physical and emotional injuries, each of the plaintiffs suffered

property damage caused by the defendants' manhandling and destruction of their personal property.

43. As set forth above, the defendants violated the plaintiffs' rights and interests secured by the Fourth Amendment.

44. As set forth above, the subject incident constituted an unnecessary, unreasonable, and excessive use of force.

45. The aforesaid acts and omissions violated the decedent's clearly established rights secured by the Fourth and Fourteenth Amendments to the United States Constitution and were the direct and proximate cause of the injuries suffered.

AS AND FOR A FIRST CAUSE OF ACTION

42 U.S.C. 1983 Claims for Violation of Rights Secured Under the Constitution

46. Plaintiffs repeat and reallege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

47. As alleged herein, the defendant officers were deliberately indifferent to and did deprive the plaintiffs of their rights, privileges and immunities secured by the Fourth and Fourteenth Amendments of the United States Constitution.

48. As alleged herein, the defendant officers obtained a search warrant of the plaintiffs' residence under false pretenses and without probable cause; obtained a no-knock search warrant absent facts necessitating such a warrant; falsely detained the plaintiffs; deprived the plaintiffs of liberty without due process of law; subjected plaintiffs to unlawful search and seizure; used excessive force on plaintiffs; and subjected plaintiffs to unnecessary and wanton infliction of pain.

49. The defendant officers conspired with the prosecutors of the Kings County District Attorney's Office to fraudulently obtain the subject search warrant and deprive the plaintiffs' rights secured under the Fourth and Fourteenth Amendments of the United States Constitution.

50. Because the defendant officers, while acting under color of state law, were deliberately indifferent to and did violate the plaintiffs' clearly-established constitutional rights, Plaintiffs seek damages pursuant to 42 U.S.C. § 1983

STATE LAW CLAIMS FOR RELIEF

51. A notice of claim setting forth the time, place and manner in which the subject incident and injuries occurred was duly filed by the plaintiffs with the defendant, THE CITY OF NEW YORK, within ninety (90) days of the occurrence; that at least thirty (30) days have elapsed since the service of such notice; that adjustment or payment thereof has been neglected or refused; and this action has been commenced within one year and ninety days after the happening of the subject accident.

52. Pursuant to New York General Municipal Law § 50-e, on or about February 14, 2020, Plaintiffs caused Notices of Claim to be timely served upon the City of New York, in writing, for adjustment and defendants have refused and/or neglected to make an adjustment or payment thereof, although same was duly demanded.

53. Hearings of the plaintiffs pursuant to §50-h of the General Municipal Law were conducted on or about November 12, 2020.

54. This action is commenced, including all applicable tolls, within the applicable statute of limitations.

55. This action falls within one or more exceptions set forth in N.Y. C.P.L.R. § 1602.

AS AND FOR A SECOND CAUSE OF ACTION*Assault, Battery, and False Imprisonment*

56. Plaintiffs repeat and reallege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

57. As alleged throughout the Complaint, the defendant officers unlawfully detained the plaintiffs and used excessive force upon plaintiffs. The detention and use of such force was not justified, privileged, or warranted under the circumstances and constituted false imprisonment and unreasonable and unnecessary force.

58. The use of such force caused plaintiffs to suffer and experience fear and imminent apprehension of physical harm, pain and suffering, physical injuries, and emotional distress.

59. The actions of the defendant officers were intentional.

60. The actions of the defendant officers constituted false imprisonment and assault and battery upon each plaintiffs' person.

61. As a direct result of the defendant officers' conduct, the plaintiffs suffered injuries and harm.

62. Pursuant to *respondeat superior*, defendant City of New York is responsible for the actions and omissions of the defendant officers as same were committed within the scope of their employment as NYPD police officers.

63. As a direct and proximate result of the foregoing, Plaintiffs were injured and damaged in an amount to be determined at trial.

AS AND FOR A THIRD CAUSE OF ACTION*Negligence*

64. Plaintiffs repeat and reallege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

65. The defendant officers were negligent in the instance in that they did not have lawful cause, justification, or authority to search plaintiffs' residence and/or use force on plaintiffs.

66. The negligent and wrongful acts and omissions by defendant City of New York's police officers included, but was not limited to, their failures to act in the instances aforesaid as a reasonably prudent police officer would in the same or similar circumstances; in that they engaged in conduct that unreasonably jeopardized the freedom, property, and life of the plaintiffs; in that they failed to develop and implement a tactical plan that was reasonable for the situation presented; failed to take reasonable precautions; failed to fully and faithfully investigate prior to obtaining the subject search warrant for plaintiffs' residence; relied upon an unreliable informant; failed to independently confirm the claims of the informant and acted without caution or care for the safety and rights of the plaintiffs and/or the outcome of their actions.

67. The defendant officers were grossly negligent, negligent, careless, reckless, inattentive, and/or otherwise proceeded in an unreasonably dangerous manner without caution or care for the safety and civil rights of the plaintiffs; in failing to give notice or warning of the impending warrant execution; in failing to obey the protocols, rules, standards, patrol guide, and training materials governing the aforesaid incident; in failing to deescalate the situation when opportunity allowed; in failing to take reasonable precautions to maintain and preserve the rights and safety of the plaintiffs; and in being otherwise negligent, reckless and careless in the instances aforesaid.

68. Defendant City of New York's police officers, acting within the scope of their

employment, negligently discharged their duties and thereby caused plaintiffs to sustain the aforementioned injuries and deprivations.

69. Defendant City of New York was negligent, careless, and reckless in the hiring, screening, training, retention, and supervision of the involved officers in that said employees lacked the character, mental capacity, experience, ability, maturity, sensibility and/or intelligence to be and remain employed by the City of New York; in failing to exercise due care and caution in its hiring, screening, training, retention, and supervision practices; in failing to suspend and/or terminate employees when such action was either proper or required; and its failure to enforce the laws of the United States of America, the State of New York and the Charter, rules and regulations of the City of New York is evidence of the reckless lack of cautious regard for the rights of the public in general and plaintiffs in particular and exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

70. Defendant City of New York knew or should have known in the exercise of reasonable care the propensities of its involved employees to engage in the wrongful conduct alleged herein.

71. The mistreatment and abuse of the plaintiffs set forth above was the reasonably foreseeable consequence of the defendant City of New York's negligent conduct.

72. Due to the negligence of the defendants, the plaintiffs suffered serious harm and were injured.

73. Defendant City of New York is responsible under *respondeat superior* for the actions and omissions of its police officers as the acts were committed within the scope of their employment and/or in service of the NYPD.

74. By the actions described above, each and every officer offered in investigating,

obtaining and/or effectuating the search warrant jointly and severally committed the wrongful acts and omissions alleged herein against plaintiffs, which are tortious under the laws of the State of New York.

75. As a direct and proximate result of the foregoing, Plaintiffs were injured and damaged in an amount to be determined at trial.

AS AND FOR A FOURTH CAUSE OF ACTION

Respondeat Superior

76. Plaintiffs repeat and reallege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

77. At all times pertinent hereto, the local law enforcement defendant officers and supervisory personnel were acting within the scope of their employment as police officers for the defendant City of New York.

78. The employer of the defendant officers and supervisory personnel are liable under the doctrine of *respondeat superior* for the intentional and negligent torts of these employees, which were committed within the scope of their employment.

79. As a direct and proximate result of the foregoing, Plaintiffs were injured and damaged in an amount to be determined at trial.

AS AND FOR A FIFTH CAUSE OF ACTION

Negligent and Intentional Infliction of Emotional Distress

80. Plaintiffs repeat and reallege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

81. As set forth above, the defendants' aforesaid acts and omissions were intentional,

malicious and excessive, and served no reasonable or legitimate interest.

82. As set forth above, the defendants' aforesaid acts and omissions were negligent and served no reasonable or legitimate interest.

83. Due to the aforesaid acts of the defendants, Plaintiffs suffered extreme emotional distress.

84. The intentional, reckless and/or negligent acts of the defendants constituted misconduct of an egregious and outrageous nature that exceeds all bounds usually tolerated by society.

85. Defendant City of New York is liable under the doctrine of *respondeat superior* for the intentional and negligent acts and omissions of its employees committed within the scope of their employment.

86. As a direct and proximate result of the foregoing, Plaintiffs suffered severe psychological and emotional trauma in an amount not to be determined at trial.

AS AND FOR A SIXTH CAUSE OF ACTION

Punitive Damages

87. Plaintiffs repeat and reallege each and every allegation set forth in the prior paragraphs as if fully set forth herein.

88. The acts and omissions of the defendant officers were willful, wanton, malicious, and oppressive and were motivated by a desire to discharge their purported duties without regard for the freedom, life, well-being, property, and constitutional rights of the plaintiffs and were based on a lack of concern for same. Such acts therefore warrant an award of punitive damages.

89. Defendant City of New York is responsible for the actions and omissions of its employees as complained herein under the doctrine of *respondeat superior*.

WHEREFORE Plaintiffs seeks an award of compensatory damages in an amount to be determined at trial, but in any event in an amount that exceeds the jurisdiction of all lower courts, against all defendants, punitive damages against each non-municipal defendant in an amount to be determined at trial, reasonable attorney's fees, costs and disbursements pursuant to law, and such other and further relief as this Court deems just and proper.

Dated: Brooklyn, New York
November 17, 2020

HELD & HINES, L.L.P.
Attorneys for Plaintiffs
2004 Ralph Avenue
Brooklyn, New York 11234
(718) 531-9700
phines@heldhines.com

/s/ Philip Hines

By: Philip M. Hines, Esq.

ATTORNEY VERIFICATION

PHILIP M. HINES, an attorney duly licensed to practice in the courts of the State of New York, hereby affirms the following under penalties of perjury:

That I am a member of the law firm of HELD & HINES, L.L.P., attorneys for the plaintiff in the within action; that I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; and that the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe them to be true. The reason this Verification is made by me and not by the plaintiff is that said plaintiff resides outside of the County in which the Affirmant's office is located.

The grounds of my belief as to all matters stated upon my own knowledge are as follows: the records, reports, contracts, and documents contained in the plaintiffs' file.

/s/
PHILIP M. HINES, ESQ.

Affirmed to November 17, 2020

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SUMMONS AND VERIFIED COMPLAINT

HELD & HINES, LLP
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Office & Post Office Address
2004 Ralph Avenue
Brooklyn, New York 11234
(718) 531-9700

Signature (Rule 130-1.1-a)

/s/
PHILIP M. HINES, ESQ.

Yours, etc.

HELD & HINES, LLP